

Court No. - 3

Case :- WRIT - C No. - 18410 of 2021

Petitioner :- Shri. Niwas Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- R.S. Pandey, Rajshree Malviya

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

1. Heard Sri R.S. Pandey, learned counsel for the petitioner; Sri Rakesh Kumar Tripathi, Advocate, holding brief of Sri Narendra Kumar Tiwari, learned counsel for the respondent-corporation and learned Standing Counsel for the State-respondents.

2. Present is a case containing allegation of theft of electricity. The petitioner has challenged the final assessment order dated 03.04.2021 alleging that prior to passing that order, the respondents did not issue any notice to the petitioner on provisional assessment order and recoveries are being pressed. Those recoveries are stated to be contrary to the scheme of the UP Electricity Supply Code, 2005.

4. Relying on the Clause 6.8(b)(i) of the UP Electricity Supply Code, 2005, it has been submitted by the learned counsel for the petitioner that the petitioner first received the assessment order dated 03.04.2021 on 01.07.2021. He filed his objection within four days therefrom on 05.07.2021 before respondent no.2 which is still pending. Therefore, no demand can be raised till the objection is disposed of.

5. *Prima facie*, the contention raised by the learned counsel for the petitioner appears to have force. In such facts, no useful purpose would be served in keeping the present petition pending or calling for counter affidavit at this stage.

6. The writ petition is **disposed of** with the following directions:

(i) The petitioner shall file a copy of this order alongwith a fresh objection before respondent no.2 within two weeks.

(ii) Thereafter respondent no.2 shall fix a date for hearing on the petitioner's objection within a period of two weeks therefrom.

(iii) After hearing the parties, the respondent no.2 shall dispose of the objection raised by the petitioner by a reasoned and speaking order strictly in accordance with law within a further

period of two weeks from the date of hearing.

(iv) For a period of two months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

7. All further recovery shall abide by the decision to be made by respondent no.2.

Order Date :- 4.8.2021

Abhilash